

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Frank Montgoris	Team: Squad #13	CCRB Case #: 201709256	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Friday, 11/03/2017 5:35 PM	Location of Incident: In front of § 87(2)(b); 3742 East Tremont Avenue	18 Mo. SOL 5/3/2019	Precinct: 43		
Date/Time CV Reported Fri, 11/03/2017 10:23 PM	CV Reported At: Precinct	How CV Reported: Phone	Date/Time Received at CCRB Fri, 11/03/2017 10:23 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Bilal Azad	17313	958277	PSA 8
2. POM Yahnny Arias	19785	958765	PSA 8
3. An officer			PSA 8

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Christian Valencia	16922	942638	PSA 8
2. POM Timothy Ryan	28504	939397	PSA 8

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Abuse: In front of § 87(2)(b), in the Bronx, an officer interfered with § 87(2)(b)'s use of a recording device.	A . Unfounded
B . An officer	Abuse: In front of § 87(2)(b), in the Bronx, an officer damaged § 87(2)(b)'s property.	B . Unfounded
C . POM Yahnny Arias	Abuse: In front of § 87(2)(b), in the Bronx, Police Officer Yahnny Arias threatened to arrest § 87(2)(b)	C . Unsubstantiated
D . POM Bilal Azad	Off. Language: At 3742 East Tremont Avenue, in the Bronx, Police Officer Bilal Azad made remarks to § 87(2)(b) based upon his perceived race.	D . Unsubstantiated

Case Summary

Sgt. Patrick Connors of PSA 8 filed this complaint with the CCRB at the request of § 87(2)(b) on November 3, 2017. Also, § 87(2)(b) filed a duplicate complaint with IAB the same day, generating log number 17-43378.

On November 3, 2017, at approximately 5:35 p.m., PO Bilal Azad and PO Yahnnny Arias apprehended § 87(2)(b) § 87(2)(b)'s brother, in front of § 87(2)(b), in the Bronx, in regards to a probable cause I-Card, allegedly for § 87(2)(b). § 87(2)(b) pulled out his cell phone and began recording the incident. An officer allegedly interfered with § 87(2)(b)'s use of his recording device and allegedly damaged § 87(2)(b)'s cell phone (**Allegations A and B: Abuse of Authority, unfounded**). PO Arias allegedly threatened to arrest § 87(2)(b) (**Allegation C: Abuse of Authority, unsubstantiated**). § 87(2)(b) was arrested, but his charges are unknown to the investigation because his arrest records were sealed and he was not available to the investigation. § 87(2)(b) alleged that he had video of this incident, but refused to send it to the CCRB upon request.

Later the same day, § 87(2)(b) went to the Throgs Neck Deli, located at 3742 East Tremont Avenue, in the Bronx, and encountered PO Azad. PO Azad allegedly told § 87(2)(b) "Are you scared, nigger?" (**Allegation D: Offensive Language, unsubstantiated**). No arrest or summons resulted from this interaction.

The investigation contacted the Throgs Neck Deli in an attempt to identify witnesses to this incident. However, the investigation was unable to identify any witnesses. Also, there was no other video footage available for this incident (See IAs).

Findings and Recommendations

Allegation A – Abuse of Authority: In front of § 87(2)(b), in the Bronx, an officer interfered with § 87(2)(b)'s use of a recording device.

Allegation B – Abuse of Authority: In front of § 87(2)(b), in the Bronx, an officer damaged § 87(2)(b)'s property.

§ 87(2)(b) alleged in his in-person statement that, when the officers placed § 87(2)(b) in handcuffs, he took out his cell phone and began recording the incident. PO Arias, whom he identified by name, then reached out with one hand and knocked the phone out of § 87(2)(b)'s hand, causing his phone to fall to the ground and the screen to crack. § 87(2)(b) noted during his in-person statement that he had cell phone video of this incident, but ultimately refused to send it to the CCRB. When § 87(2)(b) filed a duplicate complaint with IAB, he filled out a CCRB complaint form alleging that PO Azad was the officer who smacked his phone out of his hand. During a follow-up call with IAB, § 87(2)(b) denied there being any damage to his phone as a result of this incident, and stated that PO Azad was the officer who both knocked the phone out of his hand and spoke offensively towards him at the Throgs Neck Deli later that day (Board Reviews 01, 07, and 08).

Both PO Arias and PO Azad consistently denied that PO Arias interfered with § 87(2)(b)'s attempt to record the incident or knocked § 87(2)(b)'s phone out of his hand. Both officers denied that PO Arias damaged § 87(2)(b)'s phone during the incident (Board Reviews 02 and 03).

Neither PO Christian Valencia nor PO Timothy Ryan recalled this incident, and could not provide testimony to this allegation (Board Reviews 04 and 05).

§ 87(2)(g)

§ 87(2)(g)

As a result, it is recommended that **allegations A and B** be closed as **unfounded**.

Allegation C – Abuse of Authority: In front of § 87(2)(b), in the Bronx, Police Officer Yahnny Arias threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that he was standing “close” to the officers while they were placing § 87(2)(b) into the police vehicle, but could not estimate how close he got. PO Arias told § 87(2)(b) to step back once, and § 87(2)(b) complied. PO Arias then told § 87(2)(b) to leave or he would be arrested (Board Review 01).

PO Arias testified that § 87(2)(b) got to within five to ten feet of the officers, and that he and PO Azad told § 87(2)(b) multiple times to step back. § 87(2)(b) had stepped back one or two feet, but failed to comply otherwise. PO Arias denied threatening to arrest § 87(2)(b) at any point, and noted that once § 87(2)(b) was in the vehicle, he and PO Azad left (Board Review 02).

PO Azad stated that § 87(2)(b) got to within three feet from him, and told him that he needed to step back because he was too close. § 87(2)(b) stepped back, and yelled and cursed at the officers while doing so. PO Azad denied that PO Arias threatened to arrest § 87(2)(b) (Board Review 03).

Neither PO Valencia nor PO Ryan recalled this incident, and could not provide testimony to this allegation (Board Reviews 04 and 05).

§ 87(2)(g)

As a result, it is recommended that **allegation C** be closed as **unsubstantiated**.

Allegation D – Abuse of Authority: At 3742 East Tremont Avenue, in the Bronx, Police Officer Bilal Azad made remarks to § 87(2)(b) based on his perceived race.

It is undisputed that § 87(2)(b) and PO Azad encountered each other at the Throgs Neck Deli, and that no other officers were present during this interaction.

§ 87(2)(b) alleged that he went to the deli and PO Azad, who was already inside, approached him and said, “Are you scared, nigger?” PO Azad then exited the deli (Board Review 01).

PO Azad testified that he stopped into the deli by himself to get a fork, and saw § 87(2)(b) inside. § 87(2)(b) approached him and said, “You scared? You scared?” PO Azad responded by telling § 87(2)(b) “Okay buddy,” and told him to have a “blessed day” before walking out. PO Azad denied making the alleged statement, and denied calling § 87(2)(b) a “nigger” during the incident (Board Review 03).

§ 87(2)(g)

Therefore, it is recommended that **allegation D** be closed as **unsubstantiated**.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- A Notice of Claim request was submitted with the New York City Comptroller's office on April 27, 2018. That request is still pending, as of the writing of this report (Board Review 09).

Civilian and Subject Officer CCRB Histories

- [§ 87(2)(b)] has been party to six CCRB complaints, and has been named a victim in 24 allegations (Board Review 10):
 - [§ 87(2)(b)]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
- PO Arias has been a member-of-service for two years, and has been a subject in two CCRB complaints and two allegations, none of which were substantiated. [§ 87(2)(g)]
[REDACTED]
- PO Azad has been a member-of-service for two years, [§ 87(2)(b)]
[REDACTED]

Squad No.: 13

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date